

Judgment Sheet

**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR**

(JUDICIAL DEPARTMENT)

Writ Petition No.5943 of 2022

Sheikh Proteins Pvt. Ltd. Vs. Punjab Food Authority, Lahore etc.

JUDGMENT

Date of Hearing	30.04.2025
Petitioner by:	Ch.Aftab Mubarik, Advocate
Respondents by:	Mr.Sajjad Ahmad Khan, Advocate Rai Mazar Hussain Kharal, Assistant Advocate General.

Syed Ahsan Raza Kazmi, J. Through this writ petition, the petitioner company has challenged the notice dated 13.07.2022 (**Impugned Notice**) issued by the respondents.

2. The brief facts of the case are that the petitioner company is engaged in the business of poultry farming. The respondents, being the regulatory authority, issued the impugned notice to the petitioner company, therein communicating certain instructions and requiring the petitioner company to obtain registration certificate under the Punjab Food Authority Act, 2011 (**the “Act of 2011”**) for carrying out the sale of eggs for human consumption. Hence, this Writ Petition.

3. Learned counsel for the petitioner company contends that it has already obtained a certificate of registration and license from the Livestock and Dairy Development Punjab under the Poultry Production Act, 2016 (**the “Act of 2016”**). He further submits that the business of the petitioner company is supervised and controlled by Livestock and Dairy Development Punjab and therefore, falls outside the jurisdiction of the respondents. Consequently, the petitioner company is not required to obtain registration certificate under the Act of 2011. On the other hand, learned counsel for the respondents contends that the petitioner company is engaged in food business and under section 15 of the Act of 2011 the petitioner company is required to obtain registration certificate as instructed by the respondents.

4. Arguments heard and record perused.

5. The singular legal question involved herein is: whether the petitioner company, being licensed under the Act of 2016 for poultry farming is still subject to the licensing requirement under section 15 of the Act of 2011 when it engages in the sale of eggs for human consumptions.

6. To address the aforementioned legal question, it would be advantageous to examine both the Acts and their relevant provisions. The Punjab Poultry Production Act, 2016 (the “**Act of 2016**”) was promulgated on 29.10.2016 and in its preamble it is mentioned that ‘*It is necessary to register poultry premises, to improve quality of poultry products and to ensure biosecurity measures in poultry operations; and, to deal with ancillary matters.*’ The relevant section 2(h), (j) and section 3 of the Act are reproduced hereunder:-

*(h) "poultry farm" means the premises for keeping and growing more than five hundred poultry birds but shall not include a **poultry sale point** exclusively used for sale of poultry;*

(j)"poultry premises" includes a site of a poultry farm, poultry hatcheries, poultry processing plant, or poultry disease diagnostic facility:

3. Registration of poultry premises (1) The Registration Authority may, on the recommendation of the Registration Committee and subject to the prescribed conditions, register a poultry premises under this Act.

*(2) Subject to subsection (3), a person shall not establish a poultry **premises** or carry out **poultry operation** at a poultry premises unless he holds a valid certificate of registration issued under the Act.*

*(3) The owner of an existing **poultry premises** shall, within six months of the commencement of the Act, apply to the Registration Committee for registration under the Act.*

(4) The decision on an application for registration of a poultry premises shall be taken within thirty days from the receipt of the application for the purpose and the decision shall be conveyed to the applicant.

7. The Punjab Food Authority Act, 2011 was promulgated on 06.07.2011 and in its preamble it is mentioned that ‘*Whereas, it is expedient to protect public health, to provide for the safety and standards of food, to establish the Punjab Food Authority and for other connected matters*’. The section 2(f), (i) and (t) being the relevant one are reproduced hereunder:-

(f) "food" means anything used as food or drink for human consumption other than drugs, and includes-

(i) any substance which is intended for use in the preparation of food;

(ii) any flavouring agent or condiment,

(iii) any colouring matter intended for use in food, (iv) chewing gum, confectionary and other products of like nature,

(v) water in any form including ice, intended for human consumption or for use in the composition or preparation of food, and

(vi) any other thing prescribed as food,

(i) "food business" means any undertaking, whether or not for profit, carrying out any of the activities related to any stage of manufacturing, processing, packaging, storage, transportation, distribution of food, import, export and includes food services, catering services, sale of food or food ingredients.

(t) "premises" include any shop, stall, hotel, restaurant, airline services, canteens, place, vehicle, building or tent or any other structure and any adjoining land used in connection with it and any vehicle, conveyance, vessel or aircraft where any food is sold or manufactured or stored for sale:

Chapter III of the said Act deals with the enforcement and mechanism, section 15 whereof being relevant is reproduced hereunder:-

15. Licensing of food business (1) *A person shall not use any place for food business except under the prescribed registration or license.*

(2) The Food Authority may, in the prescribed manner, exempt a class of food operators from obtaining compulsory registration or license under this section.

8. Furthermore, in exercise of the power conferred under section 57 of the Act of 2011, the Punjab Food Authority framed Regulations known as Punjab Pure Food Regulations, 2018. In the said Regulation; food business, food premises and food sources are explained in Part I of the clause 2 (o), (p) and (q) which being relevant are reproduced hereunder:-

o) "Food business": means any business in the course of which commercial operations with respect to food or food sources are carried out;

p) "Food premises": means any premises used for the purpose of a food business;

(q) “Food source”: means any growing crop or live animal, bird or fish from which food is intended to be derived whether by harvesting, slaughtering, milking, collecting eggs or otherwise.

Chapter 10 of the Regulations deals with eggs and eggs products.

9. Perusal of above reproduced scheme of law reveals that the Act of 2016 deals concerned with the registration of poultry premises, regulation of poultry production, and enhancement of biosecurity measures. Section 2(j) defines "poultry premises" to include farms, hatcheries, processing plants, and diagnostic facilities. Section 2(h) clarifies that a poultry farm refers to the premises for growing birds and expressly excludes temporary sale points. Section 3 mandates registration as a condition precedent for operations.

10. The Act of 2011, by contrast, is designed as a food safety statute. Its preamble makes clear its object: to protect public health and regulate food safety and standards. Section 15(1) provides that no person shall operate a food business without prescribed registration or license. Section 15(2) vests in the Authority a power to exempt a class of food operators from this requirement.

11. It is evident that the two statutes operate in distinct but complementary spheres. The Act of 2016 regulates the production environment and standards applicable to poultry farming. The Act of 2011 intervenes at the point where food is introduced into the consumer supply chain. The sale of eggs for human consumption falls squarely within the ambit of the latter.

12. The petitioner company contention that compliance with the Act of 2016 insulates it from regulation under the Act of 2011 cannot be accepted. Such a construction would defeat the purpose of the Act of 2011, which is premised on the regulatory imperative of ensuring food safety. While there may be regulatory overlap, it is trite that overlap is not repugnancy. The two statutes serve distinct legislative objectives and may validly coexist. Furthermore, there is no ambiguity in the proposition that a company incorporated under the Companies Act, 2017 may follow different sets of statutes, like Tax Law, Labour Law

and Environmental Law being regulated by distinct regulatory authorities, simultaneously.

13. The issuance of the impugned notice is not without jurisdiction. The petitioner, upon engaging in the sale of eggs, is operating a food business within the meaning of Section 15 of the Act of 2011. The Food Authority was, therefore, acting within its statutory mandate in requiring the petitioner to obtain a license. Furthermore, no document showing exemption under section 15(2) of the Act of 2011 is available on the record.

14. The petitioner company's claim of not using its premises as a sale point is an attempt to evade the jurisdiction of the respondents. However, when questioned about other registered sale points, he denied their existence. The court finds it implausible that the petitioner would handle such a large quantity of eggs without selling them for human consumption, casting doubt on his claims.

15. In view of above discussion, this Court addresses the legal question framed supra by holding that the petitioner company being licensed under the Punjab Poultry Production Act, 2016 for poultry farming is still subject to licensing requirement under section 15 of Punjab Food Authority Act, 2011, when it engages in the sale of eggs for human consumption.

16. Accordingly, instant writ petition is **dismissed**.

(Syed Ahsan Raza Kazmi)
Judge

Approved for reporting.

Judge